

TENTATIVE RULING(S) FOR AUGUST 18, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2520898

Montes v. GM

TENTATIVE RULING(S):

Before the Court is Plaintiff's fee motion totaling \$31,432.77. This figure includes \$21,718.40 in attorney's fees; a lodestar of 0.3, increasing attorney's fees by \$6,515.52; additional anticipated attorney's fees of \$2,500.00; and costs of \$698.85. Defendant opposes and Plaintiff replies.

Attorney's Rates

Plaintiff requests hourly rates of \$575 for lead attorney Ashkan Reza (12 years' experience); \$375 for attorneys Lauren Warwick and Chris Grigoryan; \$140 for case manager/legal assistant Michelle Nguyen; \$125 for case managers Dianne Martin and Cristian Rivera; \$258 for law clerk Donya Akradi; \$125 for legal assistant Patrice Go; and \$95 for intake specialist Noemi Antipuesto and case manager Chris Coyoc. (Reza Decl., ¶¶20–36.)

Reza contends his rates are often approved and submits two Los Angeles County Superior Court decisions. (Reza Decl., ¶¶26–27; Exhs. E, F.) Defendant argues generally that the rates are excessive, but does not propose specific reductions. The Court reduces the rates as follows: Reza to \$500 per hour; junior attorneys to \$300 per hour; and the law clerk to \$200 per hour. These reduced rates are more appropriate in San Bernardino County. Defendant expressly accepts the staff rates for the other categories, and they appear reasonable. With these adjusted rates, the Court finds the requested fees adequately compensate counsel, and no multiplier is warranted.

Reasonable Hours

The starting point for any fee award is a calculation of reasonable hours reasonably expended. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 815.) Invoices are attached as Exhibit D. Plaintiff does not separately total each biller, but based on the Court's calculation, attorney Reza billed 9.3 hours; attorney Warwick billed 30.7 hours; attorney Grigoryan billed 1.5 hours; and law clerk Akradi billed 4.8 hours. Administrative staff billed more hours at their respective rates.

Defendant challenges the time entries. First, Defendant argues work performed by attorney Reza could have been performed by a lower-billing attorney. Most of Reza's work concerns this fee motion, and it is reasonable that the senior attorney handle the fee motion given counsel's likely control over billing matters. The Court declines to reduce the claim on this basis.

Second, Defendant argues certain entries are duplicative. The Court does not find attorney time duplicates administrative time; instead, the challenged administrative entries primarily reflect clerical matters more properly characterized as overhead. The Court deducts the following:

- \$475 from case manager Martin's time (3.8 hours at \$125/hour);
- \$28 from case manager/legal assistant Nguyen's time (0.2 hours at \$140/hour);
- \$87.50 for legal assistant Go (0.7 hours at \$125/hour);
- \$57.00 for intake specialist Antipuesto (0.6 hours at \$95/hour).

These deductions total \$647.50.

Third, Defendant challenges other entries highlighted in blue and gold as unreasonably high, including time to prepare and prosecute the fee motion and time spent reviewing disclosures. The Court finds the time challenged in these highlights reasonable.

Finally, Defendant challenges the \$2,500 request for anticipated fees related to the fee motion. The Court finds that the approximately 6.2 hours claimed to prosecute the fee motion to date is sufficient to cover prosecution of the entire motion, which is repetitive and routine. The Court therefore declines to award the \$2,500 in anticipated fees.

Lodestar Calculation

In light of the above reductions, the Court sets the lodestar as follows:

- Total Claimed: \$31,432.77
- Reduction for attorney Reza: -\$697.50 (rate reduced from \$575 to \$500 for 9.3 hours)
- Reduction for attorney Warwick: -\$2,302.50 (rate reduced from \$375 to \$300 for 30.7 hours)
- Reduction for attorney Grigoryan: -\$112.50 (rate reduced from \$375 to \$300 for 1.5 hours)
- Reduction for law clerk Akradi: -\$278.40 (rate reduced from \$258 to \$200 for 4.8 hours)
- Reductions for clerical work: -\$647.50

AWARD: \$27,394.37

Although not reflected in this calculation, the Court denies Plaintiff's request for \$2,500 in anticipated time for work on the fee motion.

Multiplier

Plaintiff seeks a 0.3 multiplier. However, the purpose of a multiplier is to fix the fee at the fair market value for the particular action, and the multiplier generally may not apply to work related to the attorney fee motion. (*Thayer v. Wells Fargo Bank* (2001) 92 Cal.App.4th 819, 833; *Pellegrino v. Robert Half Intern., Inc.* (2010) 182 Cal.App.4th 278, 296.)

As explained in *Ketchum v. Moses*, the contingent risk adjustment is intended to align incentives for fee award cases with the fair market value of services where there is risk and delay. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132–1133.) Nevertheless, the Court finds the contingency nature and delay are already adequately addressed by the adjusted hourly rates. Additionally, although Plaintiff prevailed, the results are not sufficiently extraordinary to justify an enhancement, particularly given the routine nature of

lemon law cases and Plaintiff's failure to state how much money was received in settlement. The Court therefore denies the multiplier.

Costs

Costs are typically challenged by a motion to tax costs served and filed within 15 days after service of the cost memorandum. (Cal. Rules of Court, rule 3.1700(b).) Here, Plaintiff filed her memorandum of costs concurrently with the motion. Defendant has not affirmatively challenged the \$698.85 in costs claimed, and has not moved to tax. The Court therefore grants costs in full.

RULING

1. The Court **GRANTS** Plaintiff's request for attorney's fees exclusive of costs in the amount of **\$27,394.37**;
2. The Court **DENIES** Plaintiff's request for a multiplier; and
3. The Court **ALLOWS** costs in the amount of **\$698.85**.

TENTATIVE RULING(S) FOR AUGUST 18, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2523192

Sewalt v. DOES

TENTATIVE RULING(S):

Plaintiff, appearing in propria persona, moves to compel compliance with a purported deposition subpoena directed to the school district. The motion is **DENIED**.

The motion fails at the threshold because Plaintiff has not demonstrated that a valid deposition subpoena was issued and properly served upon the school district. There is nothing presently before the Court that can be enforced against the school district. Plaintiff cannot obtain an order compelling a nonparty to comply with a subpoena that was never validly issued and served upon that nonparty.

The evidence before the Court does not establish that Plaintiff served a properly completed subpoena directed to the school district. Instead, the subpoena was purportedly served upon an individual identified only as "Harold H.," without establishing that he was an officer, director, custodian of records, or an agent